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Joint Appendix Cover, Index, and Certification

United States Court of Appeals for the Fourth Circuit

Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc.

No. SYN-CA4-26-CV-4105

Filed March 9, 2026

Blue Ember and Granite Heron jointly submit the selected district materials needed to review the December 15, 2025 posttrial order and amended judgment. Maya Holt and Jonas Bell of Holt Bell PLLC appear for appellant. Eli Mercer and Tara Webb of Mercer Webb PLLC appear for appellee. The parties prepared the collection from the record certified in Western District of North Carolina Case No. SYN-WDNC-24-CV-0520.

The collection preserves the district documents' filed text, chronological relationship, and public status. It does not add a new pre-verdict motion, revise a transcript answer, or represent counsel's later characterization as evidence. Materials are arranged to permit the court to follow the transaction, trial, verdict, posttrial submissions, final order, and notice of appeal without implying that every record item supports both sides equally.

The parties agree that the index describes document identity rather than evidentiary weight. Disagreements about causation, mitigation, the proper Rule 50 renewal boundary, the clear-weight analysis, and retrial scope remain preserved in the briefs. The complete certified district record remains available if the panel requires context beyond this selected collection.

Index: pleadings and operative agreements

The opening portion contains the Complaint, filed December 2, 2024, and Granite Heron Logistics, Inc.'s Answer, filed December 30. It next includes the integrated transaction documents attached or admitted below: the Master Logistics Services Agreement; BE-214 Cold-Chain Statement of Work; Quality Agreement and Temperature-Control Protocol; Validation-Lot Purchase Order and Release Specification; and Shipment Rate Confirmation and Custody Terms.

These writings identify the validation lot, define custody and monitoring duties, allocate Blue Ember's quality authority, and describe shipment performance. Their original business dates and signatures remain visible. Placement near the front of the collection does not resolve whether a particular clause establishes breach, foreseeability, or a damages limitation.

The index then identifies the February 28, 2025 Rule 26 Report Disclosures. Those disclosures provide the transition to discovery without transforming disclosed subjects into admitted facts. Duplicate attachments were omitted where the operative writing already appears in complete form. No draft agreement, negotiation marked as settlement material, or document created after the district judgment has been inserted. Counsel compared the selected copies to the certified transmission rather than relying on litigation-work-product summaries.

Index: discovery and expert materials

The discovery section contains Blue Ember's April 7 organizational deposition; Granite Heron's April 21 organizational deposition; the May 5 Transport Operations Manager Deposition; and the May 19 Cobalt Finch Capacity Witness Deposition. These transcripts address custody practices, the Fletcher transition, quality response, alternative capacity, readiness conditions, and the participants' contemporaneous understanding. Reporter certifications and recorded corrections remain associated with their respective transcripts.

The expert portion includes the July 7 Blue Ember Damages Expert Report and the August 4 Granite Heron Mitigation Expert Report. Kellan Brooks analyzed the value, replacement expense, and bounded delay claimed by Blue Ember. Dr. Elodie Park assessed the alternative Cobalt Finch schedule and a potential net reduction. Their methodologies, qualifications, assumptions, and limitations appear as filed; the index takes no position on admissibility or weight.

Counsel selected these materials because the posttrial rulings distinguish gross caused loss from avoidable loss. Inclusion does not suggest that either expert supplied a legal opinion on Rule 50 preservation. The parties have not appended deposition excerpts absent from the certified transcript, recalculated an expert table, or silently replaced a provisional input with a later figure.

Index: pretrial orders and trial proceedings

The collection next identifies the September 12 Final Pretrial Order, September 19 Joint Stipulated Facts and Contested Issues, September 26 Proposed Jury Instructions and Objections, and October 3 Final Pretrial Conference Order with witness and exhibit lists. Together these documents establish which matters were admitted, which remained disputed, and how the financial and operational proof was organized before trial.

Six reported trial segments follow. The October 6 transcript covers openings and contract proof. October 7 addresses the temperature excursion and causation. October 8 concerns Cobalt Finch and mitigation. October 9 contains damages-expert testimony. October 10 records defense evidence and the first Rule 50(a) motion. October 14 includes rebuttal, the renewed pre-verdict motion, instructions, closing arguments, deliberation events, and the verdict proceedings.

The parties preserved the reporter's sequence and did not splice questions from different days. These transcripts permit the panel to see which proof related to the custody event, which proof related to post-injury decisions, and what counsel actually requested before submission. The index's topical descriptions are navigation aids only and do not supplant the spoken words.

Index: admitted trial exhibits

Seven documentary exhibit groups accompany the reported testimony. The Shipment Logger and Chain-of-Custody Exhibit records the monitored route and handoffs. The Stability Assay and Lot-Disposition Exhibit concerns testing and Blue Ember's validation-use decision. The Replacement Campaign Schedule and Cost Ledger traces the later production work. The Cobalt Finch Capacity-Offer Emails describe the possible December slot, conditions, and decision timetable.

The Cobalt Finch Qualification and Change-Control File addresses technical transfer and incomplete approval steps. Blue Ember's Damages Schedule and Invoices support its three gross categories. Granite Heron's Mitigation-Savings Model presents the proposed avoided-delay calculation and incremental alternate cost. The collection retains each exhibit's trial-admission date while leaving underlying business dates in the exhibit itself.

No raw device file or unadmitted demonstrative is represented as part of the selected appendix. The portable documents are the same searchable record presentations certified by the district clerk. Counsel have not inferred missing logger values, filled an assay blank, or changed a schedule assumption. Those safeguards matter because the appeal concerns both what the jury could consider and whether the district court later weighed the financial evidence within the correct procedural framework.

Index: motions, verdict, and original judgment

The critical pre-verdict materials are Granite Heron's Initial Rule 50(a) Motion filed October 10 and its Close-of-All-Evidence Rule 50(a) Motion filed October 14. Both appear in full. The first identifies causation only and leaves mitigation for the jury; the second renews that same limitation after the defense evidence. The parties agree these are the motions actually made, while disputing their legal consequence.

The October 14 Special Verdict follows. It records findings on contract liability and causation, then separately states \$1,350,000 for the validation lot, \$850,000 for replacement expense, and \$2,000,000 for bounded delay. It next states a \$300,000 mitigation deduction. The October 15 Original Judgment implements the resulting \$3,900,000 net amount.

Including these documents in sequence shows the available pre-verdict ground and the jury's itemized work without asking the index to decide either. No alternative wording has been attached to the Rule 50(a) papers. No arithmetic annotation changes the special verdict. Any contention that the mitigation ground was or was not preserved must rest on the certified texts and governing rule rather than an editorial reconstruction.

Index: posttrial disposition and appeal

The concluding district section contains Granite Heron’s November 10 Rule 50(b) and Rule 59 Motion; Blue Ember’s November 24 Posttrial Opposition; Granite Heron’s December 1 Reply; and the reported posttrial hearing. The transcript bears the district event date shown in the certified record and captures Judge Miriam D. Carver’s questions about the express pre-verdict limitation, the weight of mitigation proof, and possible retrial scope.

The December 15 Posttrial Order and Amended Judgment appears next. It grants mitigation JMOL, states the \$2,700,000 amended amount, conditionally grants a Rule 59 retrial of gross damages and mitigation, and preserves liability and causation. Blue Ember’s January 12 Notice of Appeal and Avery Thorn’s January 13 Certified Docket and Record Certificate complete the selected sequence.

This arrangement permits review of timeliness under the rules governing postjudgment motions and civil notices of appeal. It also keeps the granted JMOL, conditional new trial, partial scope, and amended judgment identifiable as separate components. The index does not characterize either \$3,900,000 or \$2,700,000 as the inevitable recovery after appellate disposition.

Joint certifications

Maya Holt for Blue Ember and Eli Mercer for Granite Heron certify that they conferred, removed needless duplicates, and compared the selections with the certified district record. The collection contains no altered version of either pre-verdict motion. Counsel reviewed personal identifiers and placed no known sealed item in the public collection without authorization. The descriptions aid navigation without adopting an opponent’s inferences; the complete record remains available.

The appellate system served Maya Holt, Jonas Bell, Eli Mercer, and Tara Webb on March 9, 2026. Holt Bell PLLC coordinated filing with Mercer Webb PLLC under docket SYN-CA4-26-CV-4105 and the February 2 scheduling order. Any correction will identify its certified source and proceed by motion.